

had been referred to in the minutes as a member of the opposition division, although in fact he was not a member and did not take part in the oral proceedings (see also T 212/97).

In T 212/97 the board pointed out that R. 89 EPC 1973 permitted the opposition division to correct an obvious mistake in the copy of the decision notified to the parties. In the case at issue, a fourth person had been named as a member of the opposition division although no such person had been mentioned in the original document.

4. Legal effect of corrections according to Rule 140 EPC

The EPO makes corrections on request or of its own motion (T 150/89). In T 212/88 the board held that correction of errors under R. 89 EPC 1973 (R. 140 EPC) had to be done by means of a decision, with retrospective effect from the date of the original decision. In T 116/90 of 3 December 1990 it was held that it was unnecessary to re-date the decision as from the date of correction.

In T 130/07, the board reiterated that a correction made no difference to either the date of the corrected decision or the appeal period triggered by its service (as previously held in T 212/88 and T 1176/00). It nevertheless reprimanded the EPO for its continued failure, despite the case law already established on the point, to avoid issuing such "second decisions" bearing a seemingly new date and so seemingly triggering a fresh appeal period and instead issue properly reasoned correction decisions clearly marked as such (similarly T 105/11). On the issue of the distinction from genuine second decisions, see III.A.3.6. and III.K.3.1.1

In T 105/11 the board held that in application of the principle of the protection of legitimate expectations, the statement of grounds of appeal was deemed to have been filed in time, even though the appellant directed the notice of appeal and the statement of grounds of appeal against the correction decision with an alleged new date.

4.1. Correction requests as opposed to appeals

In T 425/97 the board referred to G 8/95 (OJ 1996, 481), which dealt with the scope of R. 89 EPC 1973 (now R. 140 EPC), stating that the difference between an appeal against a decision and a request for correction of a decision might be seen in the fact that in the first case the remedy was directed against the substance of the decision and in the latter case against the form in which the decision was expressed. In another decision issued prior to G 1/10, the board in T 1093/05 (OJ 2008, 430) similarly held that, if a grant decision was defective, the patent proprietor had to consider carefully the nature of the defect and how it could best be rectified. If it involved a substantial procedural violation, rectification was possible only on appeal.

In T 1869/12 the board stated that in case of procedural violations in the granting procedure, rectification is only possible via appeal against the decision to grant. A correction of the published European patent specification or of the decision to grant cannot be allowed when this specification corresponds to the true intention of the Examining Division when granting the patent.

In T.1869/12 the appellant (applicant) lodged an appeal against the decision of the examining division refusing to correct the published European patent specification. It tried to achieve, via correction of the decision to grant, the patent to be comprising the set of claims proposed by the examining division with a communication under R.71(3) EPC, however, with substantive amendments as subsequently proposed by the appellant. The board based its decision on G.1/10 and also stated that the appellant's request could not be granted, since it was clear that the examining division intended – and maintained that intention – to grant the patent with its own proposed claims. Therefore, the appellant should have filed an appeal against the decision to grant the patent.

5. Correction of printing errors in the publication of the patent specification

Errors in publication occur where the content of the printed specification differs from the documents (Druckexemplar) transmitted to the applicant, if these documents form the basis of the decision to grant. Such errors in publication can be corrected at any time. The competence to correct errors in publication lies with the body before which proceedings are or were last pending (Guidelines for Examination H-VI, 6 – March 2022 version). Mistakes in the specification of a European patent arising in the course of its production have no effect on the content of the patent granted (Guidelines for Examination C-V, 10 – March 2022 version).

In T.84/16 the board noted that the text of the patent specification had no binding character. Its function is confined to facilitating public access to the content of the granted patent. The definitive text of the patent is established by the grant decision. The board held that while the EPC does not explicitly deal with the situation where the patent specification does not correctly reproduce the content of the European patent, it is established practice at the EPO that if the patent specification diverges from the text on which the grant decision is based, then the patent specification is corrected by the EPO (T.150/89, T.1644/10, Guidelines C-V, 10. – March 2022 version).

In T.84/16 the specification contained printing errors, but the patentee instead of requesting a reprint of the patent specification, filed an appeal, which was held to be inadmissible, the appropriate remedy in such cases being that the text of the patent specification be brought into conformity with the content of the grant decision. The Office can arrange for correction at any time by means of a note in the European Patent Bulletin and publication of a corrigendum (see R.143(2) EPC and the decision of the President of the EPO dated 15 July 2014, OJ.2014.A86).

6. Procedural status of third parties

In T.1259/09, in the course of the opposition proceedings, opponents had requested a correction of the decision to grant pursuant to R.140 EPC. The opposition division forwarded this request to the examining division. In a communication the examining division informed the opposition division that no correction of the grant decision would take place. The opponents filed an appeal against this communication of the examining division. The dispute at issue was whether the appellants (opponents), by filing their request for correction, had initiated proceedings before the examining division which were

separate from the ex parte examination proceedings with the consequence that they had become a party to the proceedings before the examining division. The board held that by filing a request for correction of the grant decision under R. 140 EPC a third party does not become a party to the examination proceedings.

In T. 1349/08 the board held that correction of the decision to grant belongs to the examination proceedings. Analogous to Art. 115 EPC a person – here the appellant (opponent), who is neither applicant nor patentee – contesting the allowability of a correction of a decision to grant under R. 140 EPC and requesting reinstatement of the original decision to grant, cannot thereby become a party to the proceedings, irrespective of whether or not the Appellant is adversely affected by said "decision", it cannot acquire the quality of party status to the examination proceedings.

M. Inspection of files, European Patent Register and stay of proceedings

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1. Inspection of files

1.1. General

Art. 128 EPC governs the inspection of European patent applications. Art. 128(1), (2) and (5) EPC regulate file inspection prior to publication of the application under Art. 93 EPC and are therefore exceptions, as an application must normally be kept secret until it is published. Thus prior to publication, file inspection may be granted under Art. 128(1) EPC if the applicant consents, or without the consent of the applicant under Art. 128(2) EPC where any person can prove that the applicant itself has invoked its rights under the application against them.

Art. 128(3) and (4) EPC, on the other hand, regulate file inspection after the application has been published. R. 144 EPC sets out the parts of the file excluded from file inspection under Art. 128(4) EPC (see also Decision of the President of the EPO dated 12 July 2007 concerning documents excluded from file inspection (OJ SE 3/2007, 125), see in this chapter III.M.1.2.).

According to J 5/81 (OJ 1982, 155), Art. 128 EPC establishes that the confidential treatment of patent applications ceases on publication of the application, not on expiry of the 18-month period mentioned in Art. 93(1) EPC.

According to J 14/91 (OJ 1993, 479), rights under a European patent application could be considered invoked under Art. 128(2) EPC where their invocation was formulated in relation to the first filing in a contracting state but the subsequent European application was mentioned at the same time. Any dispute between the applicant and a third party

concerning the latter's right to inspect the files pursuant to Art. 128(2) EPC was best decided in oral proceedings convened at short notice.

In J. 27/87 the Legal Board confirmed the Receiving Section's decision to refuse a request pursuant to Art. 128(2) EPC, because there was no proof that the applicants had invoked their rights under the application against the appellants. The extracts from correspondence in which the applicants' representative asserted that his clients had developed a new technology and mentioned the patent application were not deemed sufficient evidence.

1.2. Exclusion from inspection under Rule 144 EPC

R. 144 EPC (cf. R. 93 EPC 1973) indicates those parts of the file which are to be excluded from inspection pursuant to Art. 128(4) EPC. These include documents excluded from inspection by the President of the EPO (R. 144(d) EPC).

The President's power to exclude documents was most recently exercised in the decision of the President of the EPO dated 12 July 2007 concerning documents excluded from file inspection (OJ SE 3/2007, 125), which provides under Art. 1(2) that documents other than those referred to in Art. 1(1) of the decision "shall be excluded from file inspection at the reasoned request of a party or his representative if their inspection would be prejudicial to the legitimate personal or economic interests of natural or legal persons". Documents may, exceptionally, be excluded by the Office of its own motion (Art. 1(2)(b) of the decision).

1.2.1 Test for exclusion

In T. 2522/10 of 28 January 2014 the board summarised that the **test for exclusion or non-exclusion** was clear and straightforward, namely would the document in question serve the purpose of informing the public about the patent or patent application in issue? While the answer to that question will depend on the facts of each case, if the answer is "yes", then there may be no exclusion and the matter need not be considered further. If the answer is "no", then consideration must be given to a further question, namely whether inspection would be prejudicial to the legitimate personal or economic interest of natural or legal persons.

In T. 379/01 the board stressed that the provisions concerning the exclusion of documents from file inspection (R. 93 EPC 1973; decision of the President of the EPO dated 7 September 2001, OJ 2001, 458) stipulated exceptions from the principle of public inspection of files pursuant to Art. 128(4) EPC 1973, thus requiring a **narrow construction** of those provisions. The board concluded that a merely abstract prejudice to hypothetical personal or economic interests was not a sufficient bar. The party requesting such exclusion should rather show that public access to certain documents would be prejudicial to specific and concrete personal or economic interests. Citing that conclusion, in T. 1401/05 of 20 September 2006 the board further expressed the opinion that documents that did not furnish information about patent applications or patents were generally subject to being excluded from file inspection, in line with the then applicable decision of the President of the EPO concerning documents excluded from file inspection dated 7 September 2001 (OJ 2001, 458). Such documents did not serve the paramount